

25STCV31516 25STCV31516

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV31516 Hearing Date: July 29, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:19 PM on July 28, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 28, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Defendants

Ten Five Hospitality LLC and Marriott International, Inc.'s motion for judgment on the pleadings as to the First Amended Complaint is DENIED as to the first cause of action and GRANTED without leave to amend as to the third and fifth causes of action.

ANALYSIS

Motion For Judgment On The Pleadings

Request

For Judicial Notice

Plaintiff requests that the Court take judicial notice of the following: (1) Relevant excerpts from the 2025 Tribute Portfolio Domestic Franchise Disclosure Document, dated March 31, 2025 (Plaintiff's Exhibit 4); (2) Relevant excerpts from Marriott Global Standards relating to Mobile Key-certified electronic lock systems, approved lock hardware, and Mobile Key implementation requirements (Plaintiff's Exhibit 5).

Requests Nos. 1 and 2 are DENIED. These are not matters of which the Court may take judicial notice pursuant to Evid. Code § 452. Rather they are evidentiary documents which the Court may not consider on a motion for judgment on the pleadings.

Meet and Confer

The

Declaration of Matthew A. Trejo reflects that Plaintiff did not participate in meet and confer discussions. This satisfies Code Civ. Proc. § 439(a)(3)(B).

Discussion

The

Court has reviewed the moving, opposing and reply briefs filed by the parties.

On a motion for judgment on the pleadings, the same rules applicable on demurrer apply. (County of Orange v. Association of Orange County Deputy Sheriffs (2011) 192 Cal.App.4th 21, 32-33.) Defendants Ten Five Hospitality LLC and Marriott International, Inc. move for judgment on the pleadings as to the First Amended Complaint as follows:

1. First

Cause of Action (Intrusion Upon Seclusion / Invasion of Privacy).

Defendants

argue that the 1AC alleges that the “employee entered either negligently or recklessly....” (1AC ¶ 34.) Therefore, Plaintiff’s complaint failed to allege the element of intent required to satisfy the first element of an Intrusion into Private Matters claim.

Defendants

also argue that, by Plaintiff’s own allegations, the incident consisted of a brief, nonviolent room entry lasting fewer than 15 seconds. (1AC ¶ 25.) Moreover, as discussed above, the 1AC concedes that the intrusion was not intentional. (1AC ¶ 34.) As such, the 1AC clearly indicates that the alleged intrusion was accidental and the motive of the alleged intruder was not to invade Plaintiff’s privacy. For these additional reasons, the Intrusion into Private Matters claim fails as a matter of law.

The

first cause of action alleges as follows:

30. At all relevant

times, Plaintiff had a reasonable expectation of privacy in his hotel room, including the right to be free from unauthorized entry, observation, or intrusion while occupying the room as a paying guest.

31. On or about

October 27, 2025, a maintenance employee acting within the course and scope of his employment with Defendant Ten Five Hospitality LLC entered Plaintiff’s room without permission, despite a clearly displayed “Do Not Disturb” sign and the audible sound of a running shower.

32. The employee’s

conduct constituted a highly offensive and unjustified intrusion into Plaintiff’s private space, under circumstances that would be deeply distressing to a reasonable person. 33. The entry occurred while Plaintiff was in a complete state of undress, compounding the humiliation, emotional trauma, and fear experienced.

34. The intrusion

was not authorized, justified, or excused by any emergency, maintenance need, or guest request. Plaintiff is informed and believes that the employee entered either negligently or recklessly, and that Defendants Ten Five Hospitality LLC and Marriott International, Inc. failed to implement or enforce adequate policies and supervision to prevent such unauthorized entries.

35. As a direct

and proximate result of Defendants' conduct, Plaintiff suffered severe emotional distress, anxiety, panic, humiliation, sleep disturbance, and fear for his personal safety. The incident also aggravated Plaintiff's existing medical conditions, including stress-related cardiomyopathy and anxiety disorder, requiring further medical and therapeutic treatment.

36. Defendants'

actions were willful, wanton, and conducted in reckless disregard of Plaintiff's rights to privacy and security, entitling Plaintiff to recover punitive and exemplary damages in an amount sufficient to deter such conduct in the future.

37. As a result

of the wrongful acts of Defendants, Plaintiff has suffered and continues to suffer general damages, special damages, and other compensable losses in an amount to be proven at trial.

(1AC, ¶¶ 30 – 37 [bold emphasis added].)

A privacy violation based on the common law tort of intrusion has two elements. First, the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person. (Citations omitted.) These limitations on the right to privacy are not insignificant. (Citation omitted.) Nonetheless, the cause of action recognizes a measure of personal control over the individual's autonomy, dignity, and serenity. (Citation omitted.) The gravamen is the mental anguish sustained when both conditions of liability exist. (Citation omitted.)

(Shulman v. Group W Productions, Inc. (1998) 18 Cal.4th 200, 286-87.)

A tortfeasor takes the plaintiff as

it finds him. (Harb v. City of Bakersfield (2015) 233 Cal.App.4th 606, 633.)

The allegation

that the employee entered the room despite a "Do Not Disturb" sign and the audible sound of a running shower is sufficient to allege an inference of intentional entry—indeed, Plaintiff's allegation that the entry was "reckless" suffices. A hotel employee can be deemed to know that the "Do Not Disturb" sign means the occupant has an expectation of privacy. Coupled with the sound of a running shower, the inference would be that an occupant was in the shower and did not want to be disturbed during that time. A jury could find that entering a room that was indicated as "Do Not Disturb" with an occupant showering would be highly offensive

to a reasonable person.

This cause
of action is sufficiently pled.

The motion
for judgment on the pleadings as to the first cause of action is DENIED.

2. Third
Cause of Action ((Negligent Infliction of Emotional Distress)).

Defendants
argue that NIED is not an independent cause of action, and is duplicative of the
negligence cause of action.

[B]ecause the only injury Wilson claimed in her lawsuit
was emotional distress, she was required to show that Edison's breach threatened
physical injury to her. (See *Potter v. Firestone Tire & Rubber Co.*
(1993) 6 Cal.4th 965, 984–985 [25 Cal. Rptr. 2d 550, 863 P.2d 795] (Potter)
[“[T]here is no independent tort of negligent infliction of emotional distress.
[Citation.] The tort is negligence, a cause of action in which a duty to the plaintiff
is an essential element. [Citations.] That duty may be imposed by law, be assumed
by the defendant, or exist by virtue of a special relationship.”].) “[U]nless the defendant has assumed a duty to
plaintiff in which the emotional condition of the plaintiff is an object, recovery
is available only if the emotional distress arises out of the defendant's breach
of some other legal duty and the emotional distress is proximately caused by that
breach of duty. Even then, with rare exceptions, a breach of the duty must threaten
physical injury, not simply damage to property or financial interests.” (Potter,
supra, 6 Cal.4th at p. 985.) Thus, at the very least, there could not have been
a breach of duty during the period when no shocks were felt on the property.

(*Wilson v. Southern California*
Edison Co. (2015) 234 Cal.App.4th 123, 155-56 [bold emphasis added].)

Here, the 1AC does not allege that Plaintiff
was threatened with physical injury. This cause of action fails.

The motion for
judgment on the pleadings as to the third cause of action is GRANTED without
leave to amend.

3. Fifth

Cause of Action (Intentional Infliction of Emotional Distress).

Defendants

argue that the 1AC fails to allege extreme and outrageous conduct and intent to inflict injury.

“The elements of the tort of intentional infliction of emotional distress are: ‘ “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. ...” Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.’ [Citation.]” (Citation omitted.) “It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (Ibid.)

(Catsouras v. Department of California Highway Patrol (2010) 181 Cal.App.4th 856, 874-75.)

“Regarding emotional distress, the trial court initially determines whether a defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery. Where reasonable men can differ, the jury determines whether the conduct has been extreme and outrageous to result in liability. Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed. [Citation.]” (Godfrey v. Steinpress (1982) 128 Cal.App.3d 154, 173 [180 Cal. Rptr. 95].)

(Plotnik v. Meihaus (2012) 208 Cal.App.4th 1590, 1614.)

Here, the Court

makes a finding that the conduct alleged in the 1AC is (1) not so extreme as to exceed all bounds of that usually tolerated in a civilized community, nor (2) not the product of intent by the employee to cause the room occupant emotional distress.

Intentional

infliction of emotional

distress requires conduct which is especially calculated to cause and does cause the claimant mental distress of a very serious nature. (Ibid.) Although

it was evident that defendants had caused plaintiffs untold distress, they had not

acted with the purpose of causing them emotional distress. (Ibid.) The misconduct had been directed primarily at the decedent minor

with plaintiffs looking on as helpless bystanders. (Id., at pp. 172-173.) The fact that defendants' conduct had not been especially calculated to cause plaintiffs' distress was fatal to their claim.

(Coon v. Joseph (1987) 192 Cal.App.3d 1269, 1273.)

The

motion for judgment on the pleading as to the fifth cause of action is GRANTED without leave to amend.